

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Harold Rodriguez	Team: Squad #15	CCRB Case #: 201709524	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 11/02/2017 9:00 PM, Friday, 11/03/2017 12:00 AM	Location of Incident: Front of § 87(2)(b)	18 Mo. SOL 5/2/2019	Precinct: 42		
Date/Time CV Reported Thu, 11/09/2017 9:56 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 11/16/2017 11:10 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Thomas Rao	19420	947382	042 PCT
2. POM Leonel Rivas	09241	949546	042 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Leonel Rivas	Abuse: Police Officer Leonel Rivas damaged § 87(2)(b)'s property.	A . Unsubstantiated
B . POM Thomas Rao	Abuse: Police Officer Thomas Rao damaged § 87(2)(b)'s property.	B . Unsubstantiated
C . POM Leonel Rivas	Abuse: Police Officer Leonel Rivas entered § 87(2)(b) in the Bronx.	C . Unsubstantiated
D . POM Thomas Rao	Abuse: Police Officer Thomas Rao entered § 87(2)(b) in the Bronx.	D . Unsubstantiated

Case Summary

§ 87(2)(b) called IAB and filed the following complaint on November 9, 2017, generating log number 17-44367. The complaint was received at the CCRB on November 16, 2017.

On November 2, 2017, at approximately 9:00 p.m., police officers arrived at § 87(2)(b) in the Bronx. § 87(2)(b) is a squatter at this location for seven years and was with his girlfriend § 87(2)(b) at the time of the incident. § 87(2)(b) alleged that PO Thomas Rao and PO Leonel Rivas of the 42nd Precinct, broke a makeshift door he built at the location (**Allegations A and B – Abuse of Authority:** § 87(2)(g) in order to enter the front yard and walk up to the main house door (**Allegations C and D – Abuse of Authority:** § 87(2)(g) where they knocked on the door and arrested § 87(2)(b).

There is no video footage associated with this case.

Findings and Recommendations

Allegation A – Abuse of Authority: Police Officer Leonel Rivas damaged § 87(2)(b)'s property.

Allegation B – Abuse of Authority: Police Officer Thomas Rao damaged § 87(2)(b)'s property.

Allegation C – Abuse of Authority: Police Officer Leonel Rivas entered § 87(2)(b) in the Bronx.

Allegation D – Abuse of Authority: Police Officer Thomas Rao entered § 87(2)(b) in the Bronx.

It is undisputed that officers arrived at § 87(2)(b)'s home on the date of the incident. § 87(2)(g).

§ 87(2)(b) alleged that approximately 7-10 uniformed officers arrived at § 87(2)(b) in the Bronx. § 87(2)(b) opened the front door to the main house and an officer stated they were looking for § 87(2)(b). § 87(2)(b) came out of the house, was arrested and taken away. § 87(2)(b) then noticed that there was a hole on a makeshift wooden door he made for the property. This door is located at the front of the location, separating the public sidewalk from the property. He did not see the damage done by the officers but stated that was the only way they could have come onto the main house (Board Review 01).

Despite several database searches, § 87(2)(b) could not be reached for a statement. § 87(2)(b) provided an address for her and contact letters were sent via United States Postal Service. Although her date of birth is unknown, § 87(2)(b) stated she was § 87(2)(b). A search of the BADS, E-Courts and the NYS OCA databases yielded negative results for an § 87(2)(b) in that age range. A search of the CLEAR and LexisNexis databases for the address provided and § 87(2)(b)'s name did not return any additional contact information for § 87(2)(b).

According to PO Rivas, there was a radio run for a family dispute at the incident location and he arrived along with PO Rao. There were no other officers present upon their arrival. PO Rivas stated that there was nobody outside of the location and neither he nor PO Rao entered the location past a wooden makeshift door. PO Rivas never touched the door and did not break anything on the door. PO Rivas requested the radio dispatcher to call back the number from which the 911 call was made, but there was no answer. They then left the location and PO Rao

Mediation, Civil and Criminal Histories

- This complaint was not suitable for mediation.
- As of June 16, 2018, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this complaint.

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Squad No.: _____

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date